

STATE OF NEW YORK

8814--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 9, 2025

Introduced by M. of A. McDONALD -- read once and referred to the Committee on Education -- recommitted to the Committee on Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to expanding opioid overdose prevention measures in certain settings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 922 of the education law, as amended by chapter 68
2 of the laws of 2016, is amended to read as follows:

3 § 922. Opioid overdose prevention. 1. School districts, public
4 libraries, boards of cooperative educational services, county vocational
5 education and extension boards, charter schools, and non-public elementary
6 and secondary schools in this state [~~may~~] **shall** provide and maintain
7 on-site in each instructional school facility or library, opioid
8 antagonists, as defined in section three thousand three hundred nine of
9 the public health law, in quantities and types deemed by the commissioner,
10 in consultation with the commissioner of health, to be adequate to
11 ensure ready and appropriate access for use during emergencies to any
12 student, individual on library premises or staff suspected of having
13 opioid overdose whether or not there is a previous history of opioid
14 abuse.

15 2. School districts, public libraries, boards of cooperative educational
16 services, county vocational education and extension boards, charter
17 schools, and non-public elementary and secondary schools in this
18 state [~~may~~] **shall** elect to participate as an opioid antagonist recipient
19 and any person employed by any such entity that has elected to participate
20 may administer an opioid antagonist in the event of an emergency,
21 provided that such person shall have been trained by a program approved
22 under section three thousand three hundred nine of the public health

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 law. Any school district, public library, board of cooperative educa-
2 tional services, county vocational education and extension board, char-
3 ter school, and non-public elementary and secondary school that has
4 employees trained in accordance with this section shall comply with the
5 requirements of section three thousand three hundred nine of the public
6 health law including, but not limited to, appropriate clinical over-
7 sight, record keeping and reporting. No person shall be required to
8 participate in the program and any participation by an individual shall
9 be voluntary.

10 3. (a) Upon the request of a school district, public library, board of
11 cooperative educational services, county vocational education and exten-
12 sion board, charter school, or non-public elementary and secondary
13 school in this state, the department of health shall provide, at no cost
14 to the recipient and in accordance with the standards, powers and
15 authorizations established by section three thousand three hundred nine
16 of the public health law, opioid antagonists in an amount sufficient for
17 the school district, public library, board of cooperative educational
18 services, county vocational education and extension board, charter
19 school, or non-public elementary and secondary school in this state to
20 be in compliance with this section.

21 (b) The commissioner of health shall establish a process by which a
22 school district, public library, board of cooperative educational
23 services, county vocational education and extension board, charter
24 school, or non-public elementary and secondary school in this state may
25 request such opioid antagonists from the department of health.

26 (c) Nothing in this subdivision shall be construed to limit the
27 authority of any such entity to otherwise acquire opioid antagonists
28 pursuant to section three thousand three hundred nine of the public
29 health law or to receive opioid antagonists through its participation as
30 a registered opioid overdose prevention program.

31 § 2. This act shall take effect on the first of July next succeeding
32 the date on which it shall have become a law. Effective immediately, the
33 addition, amendment and/or repeal of any rule or regulation necessary
34 for the implementation of this act on its effective date are authorized
35 to be made and completed on or before such effective date.